

FORM - "X"

Memorandum of Settlement

Under rule 77 of Industrial Relations Rules (Punjab) 1973

Between

Management of Kot Addu Power Company Limited

And

Al- Takbeer KAPCO Employees Union (Regd) CBA

Management Representatives: -

- | | | |
|----|--------------------------|---|
| 1. | Mr. Aftab Mahmood Butt | Chief Executive |
| 2. | Mr. Khalid Pervaiz Bajwa | General Manager Engineering/Factory Manager |
| 3. | Mr. Rabnawaz Anjum | Chief Financial Officer /GMF |
| 4. | Mr. Ahmed Kazi | Senior Manager HR & CS |
| 5. | Mr. Muhammad Nawaz | Manager HR Operations |

CBA Representatives: -

- | | | |
|----|---------------------|----------------------|
| 1. | Mr. Hamid Hassan | Chairman-CBA |
| 2. | Mr. Asif Chishti | General Secretary |
| 3. | Mr. Naeem Sadiq | Chief Patron |
| 4. | Mr. M. Saleem Rana | Senior Vice Chairman |
| 5. | Mr. Muhammad Rizwan | Vice President |
| 6. | Mr. Azhar Shahbaz | Vice Chairman |

THIS MEMORANDUM OF SETTLEMENT is made at Kot Addu on August 22, 2022 between Management of Kot Addu Power Company Limited, a company incorporated under the laws of Pakistan (hereinafter referred to as the "Management", which expression shall mean its successors and assigns) of the one part; **AND** Al-Takbeer KAPCO Employees Union (registered) Collective Bargaining Agent (hereinafter referred as the "CBA" or as "Al-Takbeer", which expression shall include its successors and assigns) of the other part and all the existing and future regular workers (Staff) employed by the Management in Kot Addu Power Company Limited (hereinafter referred to as the "Establishment" or the "Company").

WHEREAS

1. Al-Takbeer was elected as the Collective Bargaining Agent of the Establishment at the Referendum held on July 22, 2022.
2. Al-Takbeer submitted a Charter of Demands to the Management vide letter bearing No. ALT/KAPCO/CBA/002 dated July 25, 2022 (hereafter referred to as "Charter of Demands" or "COD"), which is in accordance with Section 34 of Punjab Industrial Relations Act, 2010 and Rules made thereunder (Copy of the Charter of Demands is attached as Annexure-A).
3. The Management and CBA held a number of meetings to discuss and bargain the Charter of Demands. After a series of bilateral negotiations, a final meeting was held on August 22, 2022, to discuss and bargain on the Charter of Demands to arrive at an amicable settlement.
4. The Management (for and on behalf of the Company) and the CBA have agreed to enter into this Memorandum of Settlement based on terms and conditions agreed upon, which shall be considered as full and final settlement of all demands made or specified directly or indirectly or raised in the Charter of Demands.

A. Shahbaz

22/08/22

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THIS MEMORANDUM OF SETTLEMENT RECORDS AS FOLLOWS:

The Management and CBA have agreed that the settlement recorded herein shall be valid for a period of one year and shall be deemed to commence from July 1, 2022, and end on June 30, 2023 (both days inclusive); and during this period, the CBA shall not raise any further demands having any kind of financial impact, whatsoever. This settlement will apply only to permanent workers (Staff) of the Establishment and as per below mentioned terms and conditions.

TERMS OF THE SETTLEMENT/AGREEMENT

It has been agreed as follows:

1. A total 11% increase in basic salary, without compounding (6% increase as Charter of Demands and 5% annual increment) will be given to Staff (KSG-8 to KSG-1) w.e.f. July 1, 2022.
2. Appropriate number of graduate children of existing Staff and as per agreed criteria will be given training in year 2022-23 at a suitable time considering the availability of training facilities in the Company.
3. It is agreed that appropriate numbers of Staff shall be promoted w.e.f July 1, 2022.
4. TA/DA rates would be revised.
5. Management will give an option to each eligible staff a lumpsum amount in lieu of post-retirement medical and electricity facilities, based on actuarial valuation as on 30th June of preceding year of retirement for said employee. It will be full and final settlement and no further claim would be entertained in this regard.

Al-Takbeer agrees on behalf of all workers (Staff) to help and to extend full co-operation in the maintenance of good conduct and discipline in the Establishment. The CBA recognizes that the Management has the right and sole responsibility to operate the Company and conduct its business and initiate direction in accordance with Company Rules and Regulations (as amended from time to time) and applicable laws.

Management and Al-Takbeer have signed this Memorandum of Settlement and have agreed and accepted that this Memorandum records the full and final settlement of all and any other demands raised by the CBA in the Charter of Demands ; and any other industrial disputes whatsoever in existence up to the date of signing of this Memorandum of Settlement and all other demands whether included or not in the Charter of Demands , which shall be deemed to have been settled, waived and/or withdrawn by the CBA in consideration of the settlement recorded by this Memorandum of Settlement.

[Handwritten signatures and initials]
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Management Representatives: -

Mr. Aftab Mahmood Butt
Chief Executive

Mr. Khalid Pervaiz Bajwa
General Manager Engineering/
Factory Manager

Mr. Rabnawaz Anjum
Chief Financial Officer/GMF

Mr. Ahmed Kazi
Senior Manager HR & CS

Mr. Muhammad Nawaz
Manager HR Operations

CBA Representatives: -

Mr. Hamid Hassan
Chairman-

Mr. Asif Chishti
General Secretary

Mr. Naeem Sadiq
Chief Patron

Mr. M. Saleem Rana
Senior Vice Chairman

Mr. Muhammad Rizwan
Vice President

Mr. Azhar Shahbaz
Vice Chairman

CC to:

1. The Director Labor, Government of Punjab, Lahore
2. Registrar of Trade Unions, DG Khan region DG Khan
3. The District Officer Labour (DOL) Muzaffargarh
4. The Secretary, Labour Department, Government of Punjab, Lahore